



CHAPTER cviii.

An Act to extend the periods for the commencement of the construction and for the completion of the tramways tramroads and other works and for the taking of lands authorised by the West Cumberland Electric Tramways Act 1901 to extend the area within which the West Cumberland Electric Tramways Company may supply electricity and to confer on that Company further and additional powers with regard to such supply and for other purposes. A.D. 1903.

[21st July 1903.]

WHEREAS the West Cumberland Electric Tramways Company (in this Act called "the Company") were incorporated by the West Cumberland Electric Tramways Act 1901 (herein-after called "the Act of 1901") and were authorised to make and maintain tramways tramroads road widenings bridge and other works and to erect generating stations and works for generating electrical power in the county of Cumberland and to supply electrical energy within certain defined portions of the county of Cumberland and to raise capital for those purposes :

And whereas it is expedient that the times now limited by the Act of 1901 for the commencement of the construction and for the completion of the tramroads and tramways for the construction of the road widenings and bridge and for the compulsory purchase of lands under that Act should be extended :

And whereas it is expedient that the area within which the Company are by the Act of 1901 authorised to supply electricity (herein-after called "the authorised area of supply") should be extended that the Company should be empowered to supply electricity for all public and private purposes within such extended

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A.D. 1903. — area and that such other powers as are in this Act set forth with respect to the supply of electricity and otherwise should be conferred on the Company :

And whereas it is expedient that the Company should be empowered to apply their funds for the purposes of this Act :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited as the West Cumberland Electric Tramways Act 1903 and the Act of 1901 and this Act may be cited as the West Cumberland Electric Tramways Acts 1901 and 1903.

Application of Electric Lighting Acts.

2. This Act shall be deemed to be a special Act within the meaning of the Electric Lighting Acts 1882 and 1888 and the Electric Lighting (Clauses) Act 1899 which Acts are herein-after referred to as "the principal Acts":

Provided that in construing the provisions of section 2 of the Electric Lighting Act 1888 for the purposes of this Act the expression "undertaking" and the expression "lands buildings works materials and plant" shall not include any generating station of the Company or any lands buildings works materials or plant required by the Company for the working or user by electricity of the tramways and tramroads authorised by the Act of 1901 or necessary to enable the Company to supply energy outside the area of any local authority purchasing any portion of the undertaking under the provisions of that section :

Incorporation of general Acts.

3. The following parts of Acts (so far as the same are applicable for the purposes of and are not inconsistent with or varied by the provisions of this Act) are subject to the provisions of this Act hereby incorporated with and form part of this Act (that is to say) :—

Section 3 (Interpretation of terms) and Parts II. and III. of the Tramways Act 1870 :

The provisions of the schedule annexed to the Electric Lighting (Clauses) Act 1899 except the following provisions (that is to say)—The definition in section 1 of the expression "plan" section 5 section 32 sub-section 1 and sections 41

78 83 and 84 and the sections and provisions so excepted from incorporation shall not apply to the Company or the undertaking Provided that in construing the provisions of section 21 of the said schedule for the purposes of this Act the period of three years and six months from the passing of this Act shall be read in lieu of the two several periods of "two years after the commencement of the special order" and "eighteen months after the commencement of the special order" respectively mentioned in the said section. A.D. 1903.

4. In this Act the several words and expressions to which meanings are assigned by the Act of 1901 and by the Acts wholly or partially incorporated therewith have the same respective meanings unless there be something in the subject or context repugnant to such construction or unless varied by this Act. Interpretation.

5. The time limited by the Act of 1901 for the substantial commencement of the construction of the Tramways Nos. 1 2 3 4 and 5 the works between Distington Toll Bar and Seaton Villa and the works in the urban district of Cleator Moor between Wath Brow and Keekle Bridge by that Act authorised to be constructed is hereby extended for a period of two years from the seventeenth day of August one thousand nine hundred and three and section 117 sub-section 3 section 118 sub-section 6 and section 120 sub-section 4 of the Act of 1901 so far as the same relate to or affect the substantial commencement of the construction of the said tramways and works shall be read and construed as if the time by this Act limited for the substantial commencement of the construction thereof had been the time limited by the Act of 1901. Extension of time for commencement of certain tramways and works authorised by Act of 1901.

If the said tramways and works be not substantially commenced within the said extended period of two years then on the expiration of that period the powers of the said Act of 1901 as extended by this Act granted and conferred on the Company in relation to the making and completing of the said Tramways Nos. 1 2 3 4 and 5 that portion of the undertaking and tramway between Distington Toll Bar and Seaton Villa and that portion of the undertaking and tramway in the urban district of Cleator Moor between Wath Brow and Keekle Bridge or otherwise in relation thereto shall cease and determine.

6. The powers of the Company for the compulsory purchase of lands for the purposes of the Act of 1901 are hereby extended and may be exercised by the Company during a period of two years Extension of time for compulsory purchase of lands,

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Extension
of time for
completion
of tramways
tramroads
road widen-
ings and
bridge autho-
rised by Act
of 1901.

7. The time limited by the Act of 1901 for the completion of the tramways tramroads road widenings and bridge by that Act authorised is hereby extended for a period of one year from the seventeenth day of August one thousand nine hundred and six and sections 52 and 74 of the Act of 1901 shall be read and construed as if the time by this Act limited for the completion thereof had been the time limited by the Act of 1901.

If the said tramways tramroads road widenings and bridge be not completed within the said extended period of one year then on the expiration of that period the powers of the Act of 1901 as extended by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed.

For protec-
tion of
Postmaster-
General.

8. Section 61 (For protection of Postmaster-General) of the Act of 1901 shall be and is hereby amended as follows:—

(a) Sub-section (3) thereof shall be read as if the words within brackets “or the laying of lines crossing the lines of the Postmaster-General at right angles at the point of shortest distance and so continuing for a distance of six feet on each side of such point” were omitted and such words shall be deemed to be omitted from the said sub-section:

(b) The following provision shall have effect in addition to and shall be read with the provisions contained in the said section:—

If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Company is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Company's works or to the working of their undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Company enter any of the Company's works for the purpose of inspecting the Company's plant and the working of the same and the Company shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required

by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Company pursuant to the Board of Trade regulations.

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9. For the protection of the owner for the time being of mines and minerals in the manor of Seaton in the county of Cumberland and of his lessees the Flimby and Broughton Moor Coal and Fire Brick Company Limited and of his other lessees for the time being the following provisions shall apply and have effect (that is to say):—

For protection of owner and lessees for time being of mines and minerals in manor of Seaton.

- (1) In exercise of the powers in relation to Tramway No. 11 authorised by the Act of 1901 where the same is intended to be made across the two waggonways of the Flimby and Broughton Moor Coal and Fire Brick Company Limited (herein-after referred to in this section as "the Flimby Company") (which last-mentioned waggonways cross the public road which leads from Flimby to Maryport) the Company shall so construct maintain and use the said Tramway No. 11 as not to injure or interfere with the waggonways of the Flimby Company or the traffic thereon or the working thereof and the Company shall at their own expense make all necessary alterations in the rails of the waggonways of the Flimby Company and the roadway at such respective points of crossing the said roadway as may be necessary to enable the said Tramway No. 11 to cross the same on the level and all alterations to be made under this section shall be made with as little detriment and inconvenience to the Flimby Company as the circumstances will admit and under the superintendence of the Flimby Company or their surveyor or engineer :
- (2) The Company shall not permit any cars to stop on Tramway No. 11 at the aforesaid respective points of crossing or within ten yards on either side thereof unless such stoppage shall be occasioned by circumstances over which the Company have no control :
- (3) The Company shall make good all damage done by them to the waggonways of the Flimby Company by reason of any interference therewith and shall also pay to the Flimby Company any additional cost which may be occasioned to them in the maintenance and user of their waggonways (other than the cost of keeping a lookout man) at the said

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respective points of crossing by reason of the maintenance and user of the said Tramway No. 11 :

- (4) The Company shall not interfere with the bridge belonging to the Flimby Company over the said public road at or near Risehow without the consent of the Flimby Company Provided nevertheless that the Company shall subject to the right of the owner or his lessees for the time being to remove alter or divert the said bridge have power at their discretion to make all necessary attachments and fixtures to the said bridge for the purpose either of carrying electrical or other wires or of attaching supporting or suspending lamps or signals thereto or therefrom but subject to the payment to the Flimby Company or other the owner for the time being of the said bridge of a nominal sum annually not exceeding one shilling as an acknowledgment for the same :
- (5) Any difference which shall arise between the Company and the Flimby Company under this section shall be referred to an arbitrator to be appointed by the Board of Trade on the application of either party.

Restriction
on taking
houses of
labouring
class.

10. The Company shall not under the powers of this Act or the powers of the Act of 1901 extended by this Act purchase or acquire in any borough or other urban district and elsewhere than in any borough or urban district any parish ten or more houses which on the fifteenth day of December next before the passing of the Act of 1901 were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers

persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

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11. Sections 88 and 89 of the Act of 1901 the marginal notes whereof are respectively "Deposit money not to be repaid until line opened" and "Application of deposit" shall respectively apply and have effect as fully and effectually as if such sections had been specifically re-enacted in this Act and shall be read and construed as if the period extended and limited by this Act for the completion of the tramways and tramroads had been the period limited by the Act of 1901 for such completion.

Certain sections of Act of 1901 to apply.

12. Section 111 of the Act of 1901 shall in its application to the tramways authorised by that Act and to the Company and to the local authorities in relation thereto be modified as follows (that is to say):—

As to purchase of tramways by local authorities.

- (1) The period of forty years shall be substituted for the period of thirty years mentioned in the said section :
- (2) The period of fifty years shall be substituted for the period of forty-two years mentioned in the said section.

13. The area defined by section 99 of the Act of 1901 within which the Company may supply electricity is hereby extended so as to include the urban districts and parishes following (which are herein-after in this Act referred to as "the additional area") that is to say The urban districts of Arlecdon and Frizington Cleator Moor Egremont Harrington and Aspatria and the parishes or townships of Great Clifton Little Clifton Broughton Broughton Moor Great Broughton and Little Broughton all in the county of Cumberland and for the purposes of such supply and subject to the provisions of this Act the Company shall have and may exercise all the powers rights privileges and authorities and shall be subject to the same obligations as they now have and may exercise or are subject to under the provisions of the Act of 1901 within the authorised area of supply and the provisions of the said Act so far as the same are in force at the passing of this Act shall subject to the provisions of this Act extend and apply to the additional area and the supply of electricity thereto and for the purposes of this Act and of the principal Acts the authorised area of supply together with the additional area is herein-after in this Act referred to as "the extended area of supply."

Extension of area within which Company may supply electricity.

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 ———
 Powers to supply energy within extended area.

14. Notwithstanding anything in the Act of 1901 contained the Company may in addition to the powers conferred on them by that Act but subject to the provisions of this Act supply energy within the extended area of supply for all public and private purposes as defined by the principal Acts.

Repeal of s. 100 (2) of Act of 1901.

15. Sub-section 2 of section 100 of the Act of 1901 is hereby repealed.

For protection of Arlecdon and Frizington Egremont and Harrington Urban District Councils.

16. For the protection of the urban district councils of Arlecdon and Frizington Egremont and Harrington (each of which is with respect to its own district in this section referred to as "the council") the following provisions shall unless otherwise agreed between the Company and the council have effect (that is to say) :—

- (1) If the Council shall at any time deem it expedient to apply for statutory powers under Provisional Order or Act of Parliament for the supply of electrical energy within its district the Company shall not oppose such application or take any steps with a view to preventing the grant of such powers and if in connection with any such application or or the purposes of any undertaking authorised under such statutory powers the council seek power to provide a generating station and works for the production of electrical energy the Company shall not in any way oppose the granting of such power unless they are themselves able and willing to afford to the council a supply of electrical energy in bulk adequate to the needs of the council at a price not exceeding threepence per unit payable quarterly :

Provided that if the Company shall be actually supplying energy within the district of the council at the time of the confirmation of such Provisional Order or the passing of such Act of Parliament provision shall be made in such Provisional Order or Act of Parliament for the taking over by the council on fair terms of such part of the undertaking of the Company as shall then be situate within the district of the council and required for the purpose of the supply of such district :

- (2) When the council shall have obtained such statutory powers the Company may if and when the Council by notice in writing so require supply to the council in bulk for lighting purposes such quantity of electrical energy as the council may specify at a price not exceeding threepence per

unit payable quarterly and such energy shall be supplied at such point upon such system and under such conditions as may be determined by agreement between the council and the Company : A.D. 1903.

- (3) The Company shall not at any time without the consent in writing of the council supply electrical energy for public purposes to bodies other than the council within the district of the council which consent shall not be unreasonably withheld :
- (4) If and so long as the council shall take from the Company a supply of electrical energy in bulk for lighting purposes the Company shall not supply electrical energy for any purpose to private consumers within the district of the council :
- (5) If any difference shall arise between the council and the Company as to the construction of this section or as to the rights duties or liabilities of either the council or the Company under this section or as to any act matter or thing regulated by or referred to in this section the same shall be determined by the arbitration of some fit and proper person to be agreed upon between the council and the Company or failing such agreement to be appointed on the application of either party by the Board of Trade.

17. The consent of a rural district council as the local authority to the placing of electric lines above ground under section 14 of the Electric Lighting Act 1882 and paragraph (b) of section 10 of the schedule to the Electric Lighting (Clauses) Act 1899 shall not be unreasonably withheld and if any question arises whether that consent is unreasonably withheld or not that question shall be decided by the Board of Trade. Overhead wires.

18. The streets and parts of streets throughout which the Company are to lay down suitable and efficient distributing mains for the purpose of general supply within a period of three years and six months after the passing of this Act as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are the following viz. Ennerdale Road High Street Market Place and Leconfield Street in the urban district of Cleator Moor Church Road and Station Street in the urban district of Harrington Eden Street and Criffel Street in the town of Silloth in the urban district of Holme Cultram the village of Hensingham in the parish or township of Hensingham the village of Flimby and the village of Compulsory works.

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A.D. 1903. Risehow both in the parish of Flimby and the village of Distington in the parish of Distington all in the county of Cumberland.

Testing stations.

19. The Company shall be required to provide one testing station only in each of the urban districts within the extended area of supply for the purposes of and in accordance with the provisions of section 41 of the schedule to the Electric Lighting (Clauses) Act 1899 and the provisions of such section shall apply in all respects to the provision of such testing stations at or within such urban districts.

Maximum prices for electric lighting.

20. For the purposes of electric lighting within the extended area of supply under this Act the Company may in addition to the prices authorised by the Act of 1901 to be charged by them for energy supplied by them as defined by that Act charge for energy supplied by them to any consumer for such purposes prices not exceeding those stated in that behalf in the schedule to this Act in the first and second sections thereof respectively or in the case of a method of charge approved by the Board of Trade such price as the Board of Trade shall on approving such method determine but nothing in this section or in the Act of 1901 or the principal Acts shall prevent the Company from making any agreements as herein-after provided.

Separate accounts.

21. The Company shall keep accounts of their electrical power and supply undertaking separate and apart from other accounts of the Company and section 9 of the Electric Lighting Act 1882 and section 6 of the schedule to the Electric Lighting (Clauses) Act 1899 relating to accounts and their audit shall apply to the accounts of the Company to be separately kept by the Company under this section and the audit of such accounts.

Agreements.

22. The Company and any authorised distributors local authority or person to whom the Company are entitled to give a supply of energy for power may enter into and carry into effect contracts agreements and arrangements for and with respect to all or any of the following matters (that is to say) :—

The supply by the Company to any authorised distributors local authority or person of energy plant fittings or materials :

The prices to be charged for and the terms and conditions of such supply :

The execution by any such distributors local authority or person on behalf of the Company or by the Company

on behalf of such distributors local authority or person A.D. 1903.
of any works in reference to the supply or use of energy
within the extended area of supply.

23. The Company may appropriate and apply to all or any of the purposes of this Act being purposes to which capital is properly applicable any of the capital or moneys which they have already raised or are authorised to raise by the Act of 1901 and which may not be required by them for the purposes for which the same were authorised to be raised. Company may apply their funds.

24. Notwithstanding anything in the Act of 1901 or in any Act or Acts incorporated therewith or in this Act the Company may out of any moneys authorised to be raised by the Act of 1901 pay interest at such rate not exceeding three pounds per centum per annum as the directors may determine to any shareholder on the amount from time to time paid up on the shares held by him from the respective times of such payments until the expiration of the time limited by this Act for the completion of the tramways tramroads road widenings bridge and other works authorised by the Act of 1901 or such less period as the directors may determine but subject always to the conditions herein-after stated (that is to say):— Power to pay interest out of capital during construction.

(a) No such interest shall begin to accrue until the Company shall have deposited with the Board of Trade a statutory declaration by two of the directors and the secretary of the Company that two-thirds at least of the share capital authorised by the Act of 1901 in respect of which such interest may be paid has been actually issued and accepted and is held by shareholders who or whose executors administrators or assigns are legally liable for the same :

(b) No such interest shall accrue in favour of any shareholder for any time during which any call on any of his shares is in arrear :

(c) The aggregate amount to be so paid for interest shall not exceed twenty-five thousand pounds and the amount so paid shall not be deemed share capital in respect of which the borrowing powers of the Company may be exercised but such borrowing powers shall be reduced to the extent of one-fourth of the amount paid for interest as aforesaid :

(d) Notice that the Company has power so to pay interest out of capital shall be given in every prospectus advertisement

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or other document of the Company inviting subscriptions for shares and in every certificate of shares :

- (e) The half-yearly accounts of the Company shall show the amount of capital on which and the rate at which interest has been paid in pursuance of this section.

Save as herein-before set forth no interest or dividend shall be paid out of any share or loan capital which the Company are by the Act of 1901 or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Provision
as to general
Acts.

25. Nothing in this Act contained shall exempt the Company or their undertaking from the provisions of or deprive the Company of the benefits of any general Act relating to electricity or to the supply of or price to be charged for energy or relating to tramways or tramroads passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum amount of fares rates or charges authorised by this Act.

Costs of
Act.

26. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The **SCHEDULE** referred to in the foregoing Act. A.D. 1903.

In this Schedule

The expression "unit" shall mean the energy contained in a current of one thousand amperes flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Company charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units eleven shillings and eightpence and for each unit over twenty units sevenpence.

SECTION 2.

Where the Company charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Company under the Board of Trade regulations.

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